

HOUSE BILL 1547

By Keisling

AN ACT to amend Tennessee Code Annotated, Title 8 and
Title 38, relative to criminal justice.

WHEREAS, the general assembly finds and declares the following:

- (1) Criminal justice policies and programs that are evidence-based and supported by relevant research result in superior outcomes;
- (2) State and local agencies record and retain a wide variety of criminal justice data and records, including sensitive information otherwise shielded from public disclosure;
- (3) If provided access to these data and records, bona fide researchers could conduct valuable research into criminal justice programs, practices, and outcomes, which would benefit public safety and serve the public interest;
- (4) Bona fide researchers can institute security protocols to protect and safeguard sensitive information, allowing them to safely access data and records that may not be suitable for broader public disclosure; and
- (5) Providing bona fide researchers with access to relevant criminal justice data and records will facilitate and promote criminal justice research, frequently at little to no cost to taxpayers; now, therefore

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 1, is amended by adding the following new part:

38-1-1001.

As used in this part:

- (1) "Bona fide researcher" means an individual or organization who:

(A) Agrees that any personally identifiable information provided must be used only for research and statistical activities, and must not be transferred, revealed, or used for purposes other than research or statistical activities, and that reports or publications derived from this information must not identify specific individuals;

(B) Certifies that the individual or organization has secured approval by their institutional review board for the research or statistical project that is the basis of the data access request; and

(C) If they are requesting access to any confidential, personally identifiable data, certifies that the individual or organization has security controls in place to prevent unauthorized access to any confidential, personally identifiable data, and that these controls have met the approval of their institutional review board;

(2) "Criminal justice agency" means a court with criminal jurisdiction and a local, county, or state agency that performs an activity directly relating to the detection or investigation of crime; the apprehension, pretrial release, post-trial release, prosecution, correctional supervision, rehabilitation, evaluation, or treatment of accused persons or criminal offenders; or criminal identification activities or the collection, storage, or dissemination of arrest and criminal records information;

(3) "Criminal justice data" means data collected, created, received, maintained, or disseminated by a criminal justice agency regardless of the data's physical form, storage media, or conditions of use;

(4) "Institutional review board" means a board, committee, or other group that reviews, approves initiation of, and conducts periodic review of research,

and which has received accreditation for this purpose or is part of an accredited institution of higher learning; and

(5) "Record" means any information kept, held, filed, produced, or reproduced by, with, or for a criminal justice agency, in a physical or digital form including, but not limited to, reports, statements, examinations, memoranda, opinions, folders, files, books, manuals, pamphlets, forms, papers, designs, drawings, maps, photos, letters, microfilms, computer tapes or discs, rules, regulations, or codes.

38-1-1002.

(a) A criminal justice agency must share with a bona fide researcher all criminal justice data and records, including relevant personally identifying information and demographic information, held by that agency relating to the following:

- (1) Law enforcement stop, search, or seizure;
- (2) Warrant, arrest, or citation;
- (3) Participation in a pre-arrest or post-arrest diversion, specialty court, or other alternative resolution program;
- (4) Criminal charge, disposition, or sentence;
- (5) Pretrial or posttrial release from custody, or any terms or conditions of release;
- (6) Grant, order, change in the terms of, or termination of pretrial supervised release, probation, parole, or participation in correctional or rehabilitative programs; or
- (7) Formal discipline, reclassification, or relocation of a person under criminal sentence or correctional control.

(b) A criminal justice agency must share with a bona fide researcher all criminal justice data and records, including relevant personally identifying information and demographic information, held by that agency that is subject to mandatory or discretionary disclosure to any member of the public under § 10-7-503.

(c) A criminal justice agency may share with a bona fide researcher any other criminal justice data, records, or information, including relevant personally identifying information and demographic information, held by that agency that is responsive to a bona fide researcher's request.

(d) A release of criminal justice data, records, or information under this section is not considered a release of data, records, or information to the public for the purposes of § 10-7-503 and does not waive the right to assert in the future that data, records, or information are excepted from disclosure under title 10, chapter 7.

38-1-1003.

(a) By January 1, 2027, the attorney general and reporter shall issue guidance to assist criminal justice agencies in complying with the requirements of this part, including a process for identifying and sharing criminal justice data, records, and information with bona fide researchers.

(b) A criminal justice agency may assess reasonable fees, not to exceed actual costs, for the search, retrieval, and copying of criminal justice data, records, or information requested pursuant to this part, and may waive such fees at their discretion.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.